

Date: July 6, 2026

TO: kpeggau@bernco.gov

CC: ellopez@bernco.gov

SUBJECT: ZBA2026-0001 / ZA2026-0024 — Formal Inquiry: Unaddressed Continuance
Motions and Next Steps Following July 1 Vote

Dear Ms. Peggau,

I am writing on behalf of the Maria-Diers Neighborhood Association regarding Case ZBA2026-0001 / ZA2026-0024. We were present on July 1, 2026, County Planning Commission / Board of Adjustment hearing and are writing to formally raise a procedural concern and request clarification on next steps.

1. Two Unaddressed Written Continuance Requests — Request for Clarification of Board Action

Prior to the July 1, 2026, hearing, the appellant Pat Hauser submitted two formal written continuance requests into the official case file, both of which are part of the public record:

- **60-Day Continuance Request** — submitted as **Attachment 11: New Material from the Appellant for July 1, 2026, Hearing** (File ID 116867), available at: <https://bernalillocountynm.iqm2.com/Citizens/FileOpen.aspx?Type=4&ID=116867&MeetingID=4058>
- **120-Day Continuance Request** — dated June 22, 2026, submitted to Mrs. Elvira Lopez, Planning Manager, via email, portal submission, and hand delivery, captioned: *"Formal Request to Replace Prior 60-Day Continuance with a 120-Day Deferral and Continuance,"* Case No. ZBA2026-0001 / BA2026-0001, signed by Pat Hauser, President, Maria/Diers Neighborhood Association. This document is part of the compiled case record as **BA2026-0001 Additional Documents** (File ID 116872), available at: <https://bernalillocountynm.iqm2.com/Citizens/FileOpen.aspx?Type=4&ID=116872&MeetingID=4058>

We were present at the July 1 hearing. Before proceeding with his opening statement, Mr. Hauser addressed both staff and the Board members on the microphone, asking whether the continuance requests had been received and whether they would be addressed on the record. Neither staff nor any member of the Board responded to that question. The hearing then proceeded directly to opening statements without any ruling — either granting or denying — either continuance motion.

To our knowledge, no ruling on either continuance request was issued at any point during the hearing, before or after the vote on the merits.

We are formally requesting written clarification of the following:

- Were both continuance requests acknowledged and entered into the official hearing record prior to the July 1 vote?
- Did the Board issue any ruling — formal or informal — on either continuance motion before proceeding to a vote on the merits of the appeal?
- If no ruling was made on either motion, we respectfully submit that both motions were never decided and request a written explanation of how pending procedural motions may be bypassed without a recorded ruling under Bernalillo County Board of Adjustment procedures.

We intend to raise this procedural issue as part of any further appeal proceedings and request that this letter be formally entered into the official case file.

2. Status of July 1 Vote and BCC Appeal Deadline

Please confirm the following:

- What formal action did the Board take on July 1, 2026?
- Has a Notice of Decision been issued or is one forthcoming?
- What is the deadline and procedure for filing an appeal of the Board's July 1 decision to the Board of County Commissioners?
- Is Case ZBA2026-0001 / ZA2026-0024 scheduled to appear at the August 5, 2026, CPC meeting, or does the July 1 vote conclude the matter at the Board of Adjustment level?

3. Request That This Letter Be Entered into the Official Case File

We respectfully request that this letter, along with the procedural concerns raised herein, be formally entered into the official case file for ZBA2026-0001 / ZA2026-0024 and made part of the record for any further proceedings before the Board of County Commissioners.

Thank you for your time and continued assistance. We look forward to your prompt response.

Respectfully,



Pat Hauser
134 Maria Circle N.W.
Maria-Diers Neighborhood Association
505-228-7106
hdhauser@comcast.net

Formal Inquiry: Unaddressed Continuance Motions and Next Steps Following July 1 Vote

From: hdhauser@comcast.net (hdhauser@comcast.net)

To: kpeggau@bernco.gov

Cc: nhamm@bernco.gov; ellopez@bernco.gov

Date: Monday, July 6, 2026 at 12:50 PM MDT

Ms. Peggau: Attached is my formal inquiry request for Clarification of the Boards actions.

Please acknowledge receipt of this document request.

Regards:

Pat Hauser

505-228-7106



Continuance Letter to Planning Karina PDF.pdf
816.1 kB

From: hdhauser@comcast.net <hdhauser@comcast.net>
Sent: Tuesday, July 7, 2026 2:07 PM
To: kpeggau@bernco.gov
Cc: 'Nicholas Hamm' <nhamm@bernco.gov>; 'Elvira Lopez' <ellopez@bernco.gov>; 'Maggie Rose' <gypsy.rose46@gmail.com>; 'Annette Kitts' <cbear5434@gmail.com>; 'Carmen Franklin' <czgirardin@yahoo.com>; 'Monica Galloway' <m_galloway0004@msn.com>; 'Monika Sanchez' <monimann46@gmail.com>
Subject: FW: Formal Inquiry "Unaddressed Continuance Motions, New Site Plan and Description submitted by Applicant on record prior to the hearing and Next Steps following July 1

Good afternoon Ms. Peggau: Hope all is well. I have not received a response regarding this communication from yesterday.

I called and left a message with Mr. Hamm on his voice mail.

Regards: Pat Hauser
505-228-7106

From: hdhauser@comcast.net <hdhauser@comcast.net>
Sent: Monday, July 6, 2026 4:53 PM
To: 'kpeggau@bernco.gov' <kpeggau@bernco.gov>
Cc: 'Nicholas Hamm' <nhamm@bernco.gov>; Elvira Lopez <ellopez@bernco.gov>; Maggie Rose <gypsy.rose46@gmail.com>; 'Annette Kitts' <cbear5434@gmail.com>; 'Carmen Franklin' <czgirardin@yahoo.com>; 'Monica Galloway' <m_galloway0004@msn.com>; 'Monika Sanchez' <monimann46@gmail.com>
Subject: Formal Inquiry "Unaddressed Continuance Motions, New Site Plan and Description submitted by Applicant on record prior to the hearing and Next Steps following July 1

Good afternoon, Me. Peggau: Attached, please find our "Formal Inquiry regarding the Unaddressed Continuance Motions, New Site Plan and Description submitted by the Applicant prior to the hearing and Next Steps Following the July 1 Vote.

I respectfully request that this letter, along with the procedural concerns be raised herein, be formally entered into the official case file ZBA2026-0001 /ZA2026-0024 and made part of the record for any further proceedings before the Board of County Commissioners.

Thank you for your time and continued assistance. I await your prompt response having received this communication.

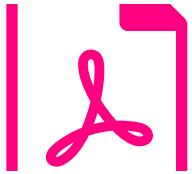
Regards:

Pat Hauser

President, Maria/Diers Neighborhood Association

134 Maria Circle N.W.

Cell: 505-228-7106



Continuance....pdf

1.2 MB